

TRUST AGREEMENT

This Trust Agreement (“Agreement” or “Trust Agreement”) of TPHGreenwich Trust, a Delaware statutory trust (this “Trust”), dated as of May 20, 2025 (the “Effective Date”) is executed by and among Trinity Place Holdings Inc., a Delaware corporation, as assignor (the “Assignor”) Gregory S. Harrison, an individual residing in the State of Delaware, as Delaware trustee (the “Delaware Trustee”), TPH Administrative Trustee LLC, as administrative trustee (the “Administrative Trustee” and, together with the Delaware Trustee, the “Trustees”), TPHGreenwich Holdings LLC, a Delaware limited liability company (the “JV Entity”), and TPHS Investor LLC, a Delaware limited liability company (“TPHGreenwich Manager”), for the benefit of stockholders of the Assignor (each, a “Beneficiary” and, collectively, the “Beneficiaries”).

RECITALS

WHEREAS, TPHGreenwich Manager desires to establish the Trust for the benefit of the Beneficiaries and not for the benefit of the Assignor;

WHEREAS, the Trust created on the Effective Date is known as the TPHGreenwich Trust;

WHEREAS, in order to provide for (i) the transfer of the Trust Estate (as defined herein) from the Assignor to the Trust, and (ii) the contemplated operation of the Trust and the issuance of the beneficial ownership interests in the Trust to the Beneficiaries, the Assignor, the Trustees, the Joint Venture Entity and the TPHGreenwich Manager now desire to enter into this Trust Agreement;

WHEREAS, upon the terms and subject to the conditions of this Agreement, the Delaware Trustee has agreed to perform its duties required by Section 8.3 of this Agreement; and

WHEREAS, upon the terms and subject to the conditions of this Agreement, the Administrative Trustee has agreed to accept the Trust Estate, in trust and to hold and administer the Trust Estate for the benefit of the Beneficiaries.

NOW, THEREFORE, in consideration of the premises, the Assignor hereby grants, releases, assigns, conveys and delivers unto the Administrative Trustee for the benefit of each Beneficiary, all of Assignor’s right, title and interest in and to all assets and liabilities of the Assignor for the uses and purposes stated herein, subject to the terms and provisions set out below, and the Administrative Trustee hereby accepts such assets and liabilities and such Trust, subject to the following terms and provisions:

ARTICLE 1

DEFINITIONS

1.1 Definitions. For purposes of this Agreement, unless the context otherwise requires, the following terms will have the definitions indicated.

“Administrative Trustee” shall mean TPH Administrative Trustee LLC, a Delaware limited liability company, or any of its Affiliates that is a transferee or any assignee of its rights and obligations set forth herein. Joseph Martin shall serve as the sole Manager of the Administrative Trustee.

“Affiliate” shall mean, with respect to a Person, any Person controlled by, controlling or under common control with a Person and in the case of the Administrative Trustee shall mean each of its beneficiaries and employees and each of their respective members, partners, stockholders, officers, employees or Affiliates.

“Assignor” shall have the meaning set forth in the preamble to this Agreement.

“Assignor Stock” means the common stock of the Assignor, par value \$0.01 per share.

“Beneficial Interest” shall mean a Beneficiary’s beneficial interest in the Trust Assets, as set forth on Exhibit A.

“Beneficiary” or “Beneficiaries” shall mean in the singular or collectively, the stockholders of record of Assignor as of the Effective Date. The Beneficiaries are listed on Annex A.

“Business Day” shall mean any day except a Saturday, Sunday or other day on which commercial banks in New York, New York are authorized or required by law to close.

“Certificate of Trust” shall mean the Certificate of Trust of the Trust filed in the Office of the Secretary of State of the State of Delaware on the Effective Date, a true, correct, and complete copy of which is attached hereto as Exhibit C.

“Delaware Statutory Trust Act” shall mean the Delaware Statutory Trust Act, 12 Del. C. §§ 3801 et seq., as amended from time to time, and any successor to such Act.

“Delaware Trustee” shall have the meaning set forth in the preamble to this Agreement.

“DTC” means the Depository Trust Company.

“Effective Date” shall have the meaning set forth in the preamble to this Agreement.

“Fiscal Period” shall have the meaning set forth in Section 2.4 hereof.

“Fiscal Year” shall have the meaning set forth in Section 2.4 hereof.

“Indemnified Liabilities” shall have the meaning set forth in Section 8.8(a) hereof.

“Indemnified Persons” shall have the meaning set forth in Section 8.8(a) hereof.

“Identification Form” means a form which may be distributed to Street Name Stockholders, and completed and returned by Street Name Stockholders to the Trust, in which a Street Name Stockholder identifies itself to the Trust and provides information for the Street Name Stockholders to be included in the records of the Trust as a holder of beneficial interests in the Trust.

“Identification Form Instructions” means instructions which may be distributed to all Street Name Stockholders beneficially owning Assignor Stock as of the Effective Date, setting for the requirements for completing the Identification Form.

“Identified Stock Interest” means, in the case of Record Stockholders and Street Name Stockholders, the number of shares held as of the Effective Date.

“JV Entity” shall have the meaning set forth in the preamble to this Agreement.

“JV Entity Operating Agreement” shall mean the Second Amended and Restated Limited Liability Company Operating Agreement of the JV Entity, as the same may be amended or otherwise modified from time to time in accordance with its terms.

“Person” shall mean any individual, limited liability company, partnership, corporation, joint venture, trust, unincorporated organization, government, governmental agency or political subdivision of any government.

“Trust” shall have the meaning set forth in the preamble to this Agreement.

“Trust Assets” shall mean the ninety-five (95%) percent limited liability company interest in the JV Entity assigned to the Trust by Assignor and any and all distributions, dividends or payments paid to the Trust, as successor by assignment to Assignor pursuant to the JV Entity Operating Agreement as set forth on Exhibit A hereto.

“Trust Estate” shall mean all of the assets owned by the Trust under this Agreement, including, without limitation, the Trust Assets and all dividends, rents, royalties, income, proceeds and other receipts of or from the Trust Assets.

“Trust Liabilities” shall mean costs and expenses of the Trust administration.

“Trustees” shall mean the Administrative Trustee and the Delaware Trustee.

ARTICLE 2

TRANSFER OF ASSETS; NATURE OF TRUST; CAPITAL ACCOUNTS; ALLOCATIONS

2.1 Name and Creation of Trust; Principal Place of Business. The Trust shall be known as the “TPHGreenwich Trust”, which name the Administrative Trustee, or the Assignor to the extent provided herein, may conduct the business of the Trust, make and execute contracts, and sue and be sued. The Trust shall maintain an office and principal place of business at 590 Madison Avenue, 32nd Floor, New York, New York 10022, or at such other place or places in the continental United States as the Administrative Trustee may, from time to time, determine.

2.2 Conveyance of the Trust Estate. The Assignor hereby transfers and conveys and assigns to the Administrative Trustee to be held in trust hereunder for the benefit of each Beneficiary, and the Administrative Trustee hereby accepts and assumes, in trust for the benefit of each Beneficiary, all of the Assignor’s right, title and interest in and to the Trust Assets for the uses and purposes stated herein, and the other terms and provisions set forth in this Agreement. The Administrative Trustee hereby declares that it will hold the Trust Assets for the Assignor. It is the intention of the parties hereto that the Trust created hereby constitute a statutory trust under Chapter 38 of the Delaware Statutory Trust Act, and that this document constitute the governing instrument of the Trust. The Trustees are hereby authorized and directed to execute and file a certificate of trust in the office of the Secretary of State of the State of Delaware to form the Trust.

2.3 Nature and Purpose of Trust.

(a) Purpose of Trust. The primary purpose of the Trust is to hold and distribute the assets of the Trust Estate to the Beneficiaries, in connection therewith, to hold, manage, administer the Trust Estate, to collect and distribute to the Beneficiaries the income and the proceeds of the disposition of the Trust Estate. The Trust is a liquidating trust pursuant to which the Administrative Trustee is to hold the Trust Estate and dispose of all or part of the same in accordance with this Agreement. This Agreement is intended to create a trust and a trust relationship and to be governed and construed in all respects as a trust. The Trust is not intended to be and shall not be deemed to be or treated as, a corporation, association, or other similar entity or a partnership (other than as set forth in Section 2.3(b) hereof). The relationship of the Beneficiaries to the Trustees shall be solely that of beneficiaries of a trust and shall not be deemed principal or agency relationships, and their rights shall be limited to those conferred upon them by this Agreement. The Trust will not hold itself out as an investment company.

(b) Trust Treated as Corporation. The Trust shall elect to be treated as a corporation for U.S. federal income tax purposes from the Effective Date under Treasury Regulation Section 301.7701-3(c) and any analogous provision of state or local law. The Administrative Trustee shall file all tax returns, including information returns to the Beneficiaries, required to be filed with any governmental agency consistent with this classification. The Assignor and the Administrative Trustee hereby agree to treat the creation of this Trust and the election by the Trust to be treated as a corporation under Treasury Regulation Section 301.7701-3(c) and any analogous provision of state or local law as exempt from all New York State and New York City real property transfer taxes and similar charges as, in each case, a mere change of identity or in form of ownership under applicable New York State and New York City law and will not take any action or position for purposes of any tax inconsistent with such exemptions.

(c) Unknown Property and Liabilities. The Administrative Trustee shall be responsible for only that property delivered to it and shall have no duty to make, nor incur any liability for failing to make, any search for unknown property.

2.4 Fiscal Periods. The Trust's fiscal year shall be the twelve-month period (or such lesser period for the first and last fiscal years of the Trust) ending on the last day of December (the "Fiscal Year"). A "Fiscal Period" shall mean a Fiscal Year or a portion thereof beginning on any of the first day of a Fiscal Year and ending on the next to occur of (a) the last day of a Fiscal Year, (b) a day on which there occurs a termination of the Trust, or (c) the date of the dissolution of the Trust pursuant to Section 4.1 hereof.

ARTICLE 2A

DISTRIBUTION OF BENEFICIAL INTERESTS

2A.1 Distribution of Beneficial Interests to Record Stockholders and Street Name Stockholders. Beneficial Interests in the Trust will be deemed distributed to all holders of record of Assignor Stock ("Record Stockholders") and all holders of the Assignor Stock who holds its shares in street name through a bank, broker or other securities nominees (a "Street Name Stockholder") as of the Effective Date automatically and without any action required on the part of the Record Stockholders or any other Person.

2A.2 Distribution of Beneficial Interests to Street Name Stockholders.

(a) General. If the Administrative Trustee determines it to be necessary or prudent, a Street Name Stockholder may be required to timely execute and deliver an Identification Form in the manner described in the Identification Form Instructions, which may include a procedure for electronic execution and submission as described in the Identification Form Instructions.

(b) Distribution of Identification Forms and Instructions. Identification Form Instructions and Identification Forms may be distributed as soon as practicable following the Effective Date to all Street Name Stockholders in accordance with the practices and procedures of DTC and its direct and indirect participants.

(c) Intentionally Omitted.

(d) Compliance with Submission Procedures. Any and all determinations with regard to the compliance by a Street Name Stockholder with any requirements for submission of an Identification Form shall be made by the Administrative Trust in its sole and absolute discretion.

2A.3 Allocation of Beneficial Interests. Beneficial interests in the Trust shall be allocated to the stockholders of the Assignor pro rata in accordance with their respective Identified Stock Interests. As soon as practicable following the Effective Date, the Trust shall send to each holder of Identified Stock Interests notice of its beneficial interest in the Trust.

ARTICLE 3

BENEFICIARIES

3.1 Intentionally Omitted.

3.2 Rights of a Beneficiary. Each Beneficiary shall be entitled to participate in the rights due to such Beneficiary hereunder. A Beneficiary is entitled to its Beneficial Interest subject to all of the terms and provisions of this Agreement. The interest of a Beneficiary of the Trust is in all respects personal property, and upon the insolvency, dissolution or incapacity of such Beneficiary, such Beneficiary's Beneficial Interest shall pass to the legal representative of such Beneficiary and such insolvency, dissolution or incapacity shall not terminate or affect the validity of this Agreement. A Beneficiary shall have no title to, right to, possession of, management of, or control of, the Trust Estate. A Beneficiary has no voting, decision-making or consent rights with respect the JV Entity. The whole title to all of the Trust Estate shall be vested in the Administrative Trustee and the sole interest of each Beneficiary shall be the rights and benefits given to it under this Agreement. This Agreement does not create for, or give to, such Beneficiary any direct legal interest or property rights in the Trust Assets, but does create a beneficial interest in the Trust Assets, only to the extent of such Beneficiary's Beneficial Interest.

3.3 No Transfer of Interests of a Beneficiary and No Certificates. The interest of a Beneficiary in the Trust shall not be directly or indirectly traded, pledged, hypothecated, mortgaged, participated, sold, conveyed, assigned, or otherwise transferred in whole or in part except by will, intestate succession, or involuntary operation of law and in such case only when accompanied by a certified copy of a court or public record or court-filed document evidencing such transfer by operation of law. Any other attempted trade, pledge, hypothecation, mortgage, participation, sale, conveyance, assignment, or other transfer shall be void *ab initio*, and the Administrative Trustee shall not be required to recognize any equitable or other claims to such interest by the transferee thereof, and the named Beneficiary shall remain in its capacity as a trust beneficiary for all purposes hereunder. The Trust shall not issue certificates or any other evidence of ownership of beneficial interests of the Trust.

3.4 No Legal Title in a Beneficiary. A Beneficiary shall not have legal title to any part of the Trust Estate. No trade, pledge, hypothecation, mortgage, participation, sale, conveyance, assignment, or other transfer, by operation of law or otherwise, of the right, title and interest of a Beneficiary in and to the Trust Estate or hereunder shall operate to terminate this Trust or entitle any successor or transferee of such Beneficiary to an accounting or to the transfer to it of legal title to any part of the Trust Estate.

ARTICLE 4

DURATION, DISSOLUTION AND TERMINATION OF TRUST

4.1 Duration of Trust. The Administrative Trustee shall use its reasonable best efforts to distribute to the Beneficiaries funds derived from the Trust Assets as soon as possible consistent with its objective of maximizing the value of the Trust Assets and shall, in its reasonable discretion, make distributions from the Trust from time to time to the Beneficiaries pro-rata based on their percentage Beneficial Interest. The Trust shall be dissolved in the sole discretion of the Administrative Trustee if there are no or nominal remaining cash assets expected to be received in the Trust Estate; provided, however, that the Administrative Trustee shall have full authority in its discretion, on behalf of and in the name of the Trust and the Beneficiaries, to extend the duration of the Trust if such an extension is deemed by the Administrative Trustee in its discretion; provided, further, and notwithstanding anything to the contrary set forth elsewhere in this Agreement, under no circumstances shall the Trustees transfer any Trust Assets to the Beneficiaries or distribute in kind any Trust Assets, it being agreed that the sole distributions to be made to the Beneficiaries shall be the cash assets held from time to time by the Trust.

4.2 Continuance of Trust for Winding Up. After the dissolution of the Trust and for the purpose of liquidating and winding up the affairs of the Trust, the Administrative Trustee shall continue to act as Administrative Trustee, and the Delaware Trustee shall continue to act as Delaware Trustee, until their duties have been fully performed and the Certificate of Trust has been cancelled. Upon distribution of the entire Trust Estate, the Administrative Trustee shall retain for a period of three years the books, records and certificates and other documents and files that shall have been delivered to or created by the Administrative Trustee or the Delaware Trustee. At the Administrative Trustee's discretion, all of such records and documents may, but need not, be destroyed at any time after three years from the completion and winding up of the affairs of the Trust. Except as otherwise specifically provided herein, upon the discharge of all liabilities of the Trust and final distribution of the entire Trust Estate, the Administrative Trustee shall file a certificate of cancellation of the Certificate of Trust, and, thereafter, the Trustees shall have no further duties or obligations hereunder.

ARTICLE 5

AMOUNTS RESERVED AND PENDING CLAIMS

5.1 Amounts Reserved and Pending Claims.

(a) If there are any claims or potential claims against the Trust (either directly or indirectly, including, without limitation, potential claims for which the Trust might have an indemnification obligation and any reasonable costs and expenses incurred by the Trust in defending such claims) for which the probable loss cannot, in the judgment of the Administrative Trustee, be definitively ascertained, then such claims shall initially be taken into account in computing distributions pursuant to Section 6.1 at an amount estimated by the Administrative Trustee to be sufficient to cover any potential loss or liability on account of such claims, and the Trust shall retain funds equal to the estimated amount. Upon final settlement of such claims or a determination by the Administrative Trustee that the probable loss therefrom can be definitively ascertained, such claims shall be taken into account in the amount at which they were settled or in the amount of the probable loss therefrom in computing amounts distributable pursuant to Section 6.1, and any excess funds retained shall be distributed.

(b) Notwithstanding anything to the contrary contained in this Agreement, the Administrative Trustee shall retain such reserves as it deems necessary in its reasonable judgment, including reserves to cover the obligations of the Trust.

ARTICLE 6

ADMINISTRATION OF TRUST ASSETS

6.1 Administration of Trust Estate. Distributions from the Trust shall be made (except for amounts reserved pursuant to Section 5.1 (Amounts Reserved and Pending Claims)) by the Administrative Trustee from cash held by the Trust, in the following manner and order of priority: (a) first, to pay any Trust Liabilities in the order of priority as provided by law, and (b) thereafter, any remaining distributions from the Trust shall be distributed to the Beneficiaries pro-rata based on their percentage Beneficial Interests; provided that the Administrative Trustee shall have discretion not to make a distribution if the amount of available cash is minimal, so as to make a distribution impracticable, both initially and from time to time.

6.2 Interim Distributions. At such times as may be determined by it, but at least annually in any year in which income is derived from Trust Assets, the Administrative Trustee shall distribute, or cause to be distributed, to each Beneficiary, in cash, a portion of the income derived from the Trust Assets as the Administrative Trustee may in its sole discretion determine may be distributed without detriment to the conservation and protection of the value of the Trust Assets and without violating this Agreement or applicable law.

6.3 Final Distribution. If the Administrative Trustee shall determine that the remaining assets of the Trust may be conveniently distributed, or if the existence of the Trust shall terminate, the Administrative Trustee shall, as expeditiously as is consistent with this Agreement and applicable law, distribute the Trust Estate to the Beneficiaries pro-rata based on their beneficial interests; provided that the Administrative Trustee shall have discretion not to make a distribution if the amount of available cash is minimal, so as to make a distribution impracticable, both initially and from time to time.

6.4 Maintenance of Books; Right to Inspect. Full and accurate books of account, in which shall be entered each and every transaction of the Trust, shall be kept by the Administrative Trustee at an office of the Trust (or at such other place as the Administrative Trustee shall advise the Beneficiaries in writing), and such books shall, at all reasonable times, be open to inspection and copying by the Beneficiaries or its authorized agents, employees or representatives for a proper purpose. Notwithstanding anything to the contrary contained in this Agreement, the Administrative Trustee shall not be required to engage third-party auditors or to conduct independent audits of the Trust.

ARTICLE 7

POWERS OF AND LIMITATIONS ON THE TRUSTEES

7.1 Specific Powers of Administrative Trustee. The Administrative Trustee shall have the following specific powers in addition to any powers conferred upon it by any other provision of this Agreement or by virtue of any present or future statute or rule of law in all instances without any action or consent required by any Beneficiary, provided, however, that the enumeration of the following powers shall not be considered in any way to limit or control the power of the Administrative Trustee to act as specifically authorized by any other section or provision of this Agreement and to act in such a manner as the Administrative Trustee may deem necessary or appropriate to conserve and protect the Trust Estate or to confer on a Beneficiary the benefits intended to be conferred upon it by this Agreement:

(a) Hold, manage, and distribute income from the Trust Assets (and the proceeds thereof) in accordance with the terms of this Agreement to the full extent permitted under applicable law, in cash or otherwise;

(b) Collect all property, assets and rights in the Trust Estate, and pay, discharge and satisfy all claims, expenses, charges, liabilities and obligations existing with respect to the Trust Estate, the Trust or the Trustees;

(c) Pay and discharge any costs, expenses, fees, or obligations deemed necessary or appropriate to preserve or enhance the value of the Trust Assets and discharge its duties under this Agreement;

(d) In general, without in any way limiting any of the foregoing, deal with the Trust Assets or any part or parts thereof in all other ways as would be lawful

for any Person owning the same to deal therewith, but in all events for the benefit of the Beneficiaries;

(e) Without limitation, do any and all things necessary to accomplish the purposes of this Agreement and to act at all times solely for the benefit of the Beneficiaries;

(f) To make investments of Trust cash in investments, in the sole discretion of the Administrative Trustee;

(g) To set aside funds for reasonable reserves with respect to Trust activities as set forth in Section 5.1 herein;

(h) To instruct the Delaware Trustee to take all actions that may be necessary or appropriate for the continuation of the Trust's valid existence as a Delaware statutory trust under the laws of the State of Delaware;

(i) To execute all other instruments of any kind or character that the Administrative Trustee determines to be necessary, appropriate, proper, advisable, incidental or convenient in connection with the Trust's activities and beneficial interests in the Trust, the execution thereof by the Administrative Trustee to be conclusive evidence of such determination;

(j) To appoint agents, advisors, managers or independent contractors of the Trust;

(k) Be responsible for the policies of the Trust and for the supervision of the activities of the Trust conducted by all agents, advisors, managers or independent contractors of the Trust consistent with this Agreement and have ultimate responsibility for the day-to-day management and administration of the Trust and the Trust Estate;

(l) To comply with all federal and state laws of general application known to it;

(m) File tax returns on behalf of the Trust; and

(n) Withhold from any distributions, any amounts required to comply with federal or state tax laws.

7.2 Specific Limitations of the Administrative Trustee.

(a) The Administrative Trustee shall not do any act in contravention of this Agreement or the Certificate of Trust;

(b) The Administrative Trustee shall not confess a judgment against the Trust, provided, however, that this Section 7.2(b) shall not limit in any regard, the ability of the Administrative Trustee to settle claims; and

(c) The Administrative Trustee shall not possess Trust property, or assign its rights in specific Trust property, for other than a Trust purpose.

7.3 Third-Party Reliance. Third parties dealing with the Trust are entitled to rely conclusively upon the authority of the Administrative Trustee under the Delaware Statutory Trust Act and as set forth in this Agreement.

7.4 Limitations on a Beneficiary. A Beneficiary shall not participate in the voting, decision-making or control of the business of the Trust. Except to the extent permitted by the Delaware Statutory Trust Act, a Beneficiary shall have no right or authority to act for or bind the Trust.

ARTICLE 8

CONCERNING THE TRUSTEES AND BENEFICIARIES

8.1 Generally. The Trustees hereby accept and undertake to discharge the Trust created by this Agreement, upon the terms and conditions thereof on behalf of the Beneficiaries. The Administrative Trustee shall exercise such of the rights and powers vested in it by this Agreement and use the same degree of care and skill in its exercise as a prudent person would exercise or use under the circumstances in the conduct of its own affairs.

8.2 Administrative Trustee Powers on Behalf of the Beneficiaries. Except as otherwise expressly provided herein, the power to hold, manage, administer and liquidate the Trust shall be vested exclusively in the Administrative Trustee, who shall have the power on behalf of and in the name of the Trust and the Beneficiaries to carry out any and all of the purposes of the Trust. Additionally, the Administrative Trustee shall have the power to withhold from distributions to non-US holders or other applicable holders of Beneficial Interests to the extent that the Assignor or a tax authority determines that withholding is required under U.S. federal or other applicable tax law (including, but not limited to, any withholding required when the Beneficial Interests were distributed by the Assignor to such non-US Holders). Any amounts so withheld shall be paid over to the Assignor and remitted to the appropriate tax authorities as required.

8.3 Specific Powers of Delaware Trustee. Notwithstanding any other provision of this Agreement, the Delaware Trustee shall not be entitled to exercise any powers, nor shall the Delaware Trustee have any of the duties and responsibilities of the Administrative Trustee described in this Agreement. The Delaware Trustee shall be a Trustee for the sole and limited purpose of fulfilling the requirements of Section 3807 of the Delaware Statutory Trust Act. The Delaware Trustee shall also maintain its authority and power to act as the Delaware Trustee in the State of Delaware, as applicable.

8.4 Liability of Trustees.

(a) Actions by Trustees and a Beneficiary. Neither of the Trustees shall be liable to the Trust or a Beneficiary for any action taken or omitted to be taken by such Trustee or any of its members, so long as such action or omission is not in

violation of the provisions hereof, is not taken in bad faith and does not constitute fraud, gross negligence or willful misconduct by such Trustee or any of its members. The Trust hereby waives on behalf of the Trust and on behalf of each Beneficiary, to the greatest extent permitted by law, any liability against a Trustee.

(b) Trust Estate to Satisfy Liabilities. Persons dealing with a Trustee shall look only to the Trust Estate to satisfy any liabilities of the Trust properly incurred by such Trustee in carrying out the terms of this Trust, and the Trustees shall not have any personal or individual obligation to satisfy any such liability other than as provided under this Agreement.

8.5 Delaware Trustee; Legal Counsel. The Delaware Trustee may reasonably consult with legal counsel at the reasonable expense of the Trust and the Delaware Trustee shall not be liable for any action taken or suffered by it in accordance with the advice of its counsel; provided, however, that the Trust shall not be liable for legal counsel fees of the Delaware Trustee in excess of \$1,000, unless the incurrence of such fees by the Delaware Trustee has received the prior written approval of the Administrative Trustee.

8.6 No Liability for Other Trustee. No Trustee shall be responsible for the acts or omissions of any other Trustee if done or omitted without his knowledge or consent, and no successor Trustee shall be in any way responsible for the acts or omissions of any Trustee in office prior to the date on which he, she or it becomes a Trustee.

8.7 Express Exculpatory Clauses in Instruments. As far as practicable, the Trustees shall cause any written instrument creating an obligation of the Trust to include a reference to this Agreement and to provide that neither the Beneficiaries nor the Trustees shall be liable thereunder and that the other parties to such instrument shall look solely to the Trust Estate for the payment of any claim thereunder or the performance thereof; provided, however, that, the omission of such provision from any such instrument shall not render the Beneficiaries or the Trustees liable nor shall the Trustees be liable to anyone for such omission.

8.8 Indemnification of Trustees; Assignor.

(a) General. Each of the Trustees and its members and managers, and their respective managers, members, partners, stockholders, officers, directors, employees, agents and affiliates, and the heirs, executors and administrators of each such Person (the "Indemnified Persons"), shall be indemnified by the Trust to the fullest extent permitted by law against all reasonable costs and expenses (including attorneys' fees) and all judgments, fines, settlements and/or liabilities (collectively, "Indemnified Liabilities") incurred by or imposed upon any Indemnified Person in connection with or resulting from investigating, preparing or defending any action, suit or proceeding whether civil, criminal, administrative, legislative or other or any appeal thereof which such Person may be made a party of or otherwise involved in or with which such Person shall be threatened which is brought or threatened by any Person by reason of or in connection with such Indemnified Person being or having been such Trustee or having

acted on behalf of the Trust, or by reason of any action or alleged action or omission or alleged omission by any Indemnified Person in any capacity described above; provided, however, that no Indemnified Person shall be indemnified for Indemnified Liabilities arising in connection with or resulting from such Indemnified Person's acting in bad faith, fraud, willful misconduct or gross negligence or the violation by such Indemnified Person or any state or federal securities laws. The provisions of this Section 8.8(a) shall survive the termination of this Agreement and the resignation and removal of any Trustee. The Trust shall withhold from future distributions, if any, to indemnify the Assignor for taxes that should have been withheld on the distribution of the Beneficial Interests. In addition, if the Trust makes distributions in the future and withholding is due because the Trust has current or accumulated earnings and profits in the future, the Trust shall withhold for the same, as any US corporation would withhold on distributions that were paid as taxable dividends to non-US stockholders.

(b) Insurance. The Trust may purchase and maintain, to the extent consistent with prudent business practice, insurance for the benefit of a Trustee and for any Indemnified Person against any liability asserted against such Indemnified Person and incurred by such Indemnified Person in any capacity described in this Section 8.8 or arising out of his or its status as such, whether or not the Trust would have the power to indemnify him or it against such liability under the provisions of this Section 8.8.

8.9 Protection of Persons Dealing with the Trustees. Any Person dealing with the Trustees shall be fully protected in relying upon a certificate or certificate signed by the Administrative Trustee that such trustee has authority to take any action under this Agreement.

ARTICLE 9

TRUST FEES AND EXPENSES

9.1 Trust Expenses. The Trust shall bear all expenses relating to fees and expenses of legal counsel and independent certified public accountants, appraisers, interest charges, fees and expenses of experts or custodians retained by the Trust, winding-up or liquidating expenses or other expenses of an extraordinary nature that do not usually arise in the normal operation of the Trust. In addition, the Trust will bear all other reasonable expenses of the Trust incurred by the Administrative Trustee relating to the performance of its function in monitoring and distributing cash proceeds.

9.2 Compensation of the Delaware Trustee. The Delaware Trustee shall be entitled to compensation and reimbursement of expenses as set forth on Exhibit B hereto.

ARTICLE 10

TRUSTEES AND SUCCESSOR TRUSTEES

10.1 Number of Trustees. The Trust shall have one (1) Delaware Trustee and one (1) Administrative Trustee. Each of the Trustees have been selected and appointed by the Assignor and shall serve for the duration of the Trust unless such Trustee resigns or is removed for any reason (or no reason) in the sole discretion of the Assignor. In the event of any resignation or removal of the Delaware Trustee or the Administrative Trustee in accordance with the provisions of this Agreement, the Assignor is entitled to appoint the successor Delaware Trustee or the Administrative Trustee, as applicable.

10.2 Resignation or Removal of Trustees.

(a) The Delaware Trustee may resign from the Trust by mailing notice thereof to the parties to this Agreement. Such resignation of the Delaware Trustee shall become effective only upon the successor Delaware Trustee's acceptance of appointment as Delaware Trustee in accordance with the provisions of this Agreement. In addition, the Delaware Trustee may be removed for any reason at any time by the Administrative Trustee.

(b) The Administrative Trustee may resign from the Trust by mailing notice thereof to the parties to this Agreement. Such resignation of the Administrative Trustee shall become effective only upon the successor Administrative Trustee's acceptance of appointment as Administrative Trustee in accordance with the provisions of this Agreement. Should Joseph Martin resign or no longer serve as the Manager of the Administrative Trustee, the successor Manager to be appointed and serve is Jack Howard.

10.3 Acceptance of Appointment by Successor Trustees.

(a) Any successor Delaware Trustee appointed hereunder shall execute an instrument accepting such appointment and assuming all of the obligations of the retiring Delaware Trustee hereunder and thereupon the successor Delaware Trustee shall, without any further act, become vested with all the estates, properties, rights, powers, trusts, and duties of its predecessor in the Trust hereunder with like effect as if originally named herein.

(b) Any successor Administrative Trustee appointed hereunder shall execute an instrument accepting such appointment and assuming all of the obligations of the retiring Administrative Trustee hereunder and thereupon the successor Administrative Trustee shall, without any further act, become vested with all the estates, properties, rights, powers, trusts, and duties of its predecessor in the Trust hereunder with like effect as if originally named herein; but the retiring Administrative Trustee nevertheless shall, when requested in writing by the successor Administrative Trustee, execute and deliver an instrument or instruments conveying and transferring to such successor Administrative Trustee upon the trust herein expressed, all the estates, properties,

rights, powers and trusts of such retiring Administrative Trustee, and shall duly assign, transfer, and deliver to such successor Administrative Trustee all property and money held hereunder.

10.4 Absence of Fiduciary Duty. Except as otherwise provided in the Delaware Statutory Trust Act, by law or expressly in this Trust Agreement, the Trustees shall not have any fiduciary or other duty to any Beneficiary with respect to the business and affairs of the Trust, except that nothing shall limit or eliminate liability for any act or omission that constitutes a bad faith violation of the implied contractual covenant of good faith and fair dealing.

ARTICLE 11

[INTENTIONALLY DELETED]

ARTICLE 12

MISCELLANEOUS PROVISIONS

12.1 Amendment. Except as provided, this Agreement may be modified or amended at any time by the written approval of the parties to this Agreement; provided, however, no amendment shall result in an adverse tax consequence to TPHGreenwich Manager or the Beneficiaries, adversely alter the rights of the Beneficiaries to distributions hereunder or change the federal income tax classification of the Trust, it being agreed that any such amendment shall be deemed void ab initio. The Delaware Trustee shall not be required to consent to modifications or amendments unless its rights hereunder are affected.

12.2 Compliance with Joint Venture Operating Agreement. This Agreement is intended to comply in all respects with the JV Entity Operating Agreement relating to the dissolution, winding-up and termination of the JV Entity.

12.3 GOVERNING LAW; CONSENT TO JURISDICTION. THIS AGREEMENT AND THE RIGHTS OF THE PARTIES HEREUNDER SHALL BE GOVERNED BY AND INTERPRETED IN ACCORDANCE WITH THE LAWS OF THE STATE OF DELAWARE AND ALL RIGHTS AND REMEDIES SHALL BE GOVERNED BY SUCH LAWS WITHOUT REGARD TO THE PRINCIPLES OF CONFLICT OF LAWS OF THE STATE OF DELAWARE OR ANY OTHER JURISDICTION THAT WOULD CALL FOR THE APPLICATION OF THE LAW OF ANY JURISDICTION OTHER THAN THE STATE OF DELAWARE; PROVIDED, HOWEVER, THAT THERE SHALL NOT BE APPLICABLE TO THE PARTIES HEREUNDER OR THIS AGREEMENT ANY PROVISION OF THE LAWS (STATUTORY OR COMMON) OF THE STATE OF DELAWARE PERTAINING TO TRUSTS THAT RELATE TO OR REGULATE, IN A MANNER INCONSISTENT WITH THE TERMS HEREOF (A) THE FILING WITH ANY COURT OR

GOVERNMENTAL BODY OR AGENCY OF TRUSTEE ACCOUNTS OR SCHEDULES OF TRUSTEE FEES AND CHARGES, (B) AFFIRMATIVE REQUIREMENTS TO POST BONDS FOR TRUSTEES, OFFICERS, AGENTS OR EMPLOYEES OF A TRUST, (C) THE NECESSITY FOR OBTAINING COURT OR OTHER GOVERNMENTAL APPROVAL CONCERNING THE ACQUISITION, HOLDING OR DISPOSITION OF REAL OR PERSONAL PROPERTY, (D) FEES OR OTHER SUMS PAYABLE TO TRUSTEES, OFFICERS, AGENTS OR EMPLOYEES OF A TRUST, (E) THE ALLOCATION OF RECEIPTS AND EXPENDITURES TO INCOME OR PRINCIPAL, (F) RESTRICTIONS OR LIMITATIONS ON THE PERMISSIBLE NATURE, AMOUNT OR CONCENTRATION OF TRUST INVESTMENTS OR REQUIREMENTS RELATING TO THE TITLING, STORAGE OR OTHER MANNER OF HOLDING OR INVESTING TRUST ASSETS OR (G) THE ESTABLISHMENT OF FIDUCIARY OR OTHER STANDARDS OF RESPONSIBILITY OR LIMITATIONS ON THE ACTS OR POWERS OF TRUSTEES THAT ARE INCONSISTENT WITH THE LIMITATIONS OR LIABILITIES OR AUTHORITIES AND POWERS OF THE TRUSTEES HEREUNDER AS SET FORTH OR REFERENCED IN THIS AGREEMENT.

12.4 Derivative Actions. Except as otherwise required by applicable law, no Beneficiary shall have any right to bring an action in the right of the Trust except in accordance with Section 3816 of the Delaware Statutory Trust Act. A Beneficiary's right to bring a derivative action is subject to the requirement that a majority in interest of the Beneficiaries of the Trust join in the bringing of such derivative action.

12.5 Successors and Assigns. This Agreement shall be binding upon and shall inure to the benefit of the parties hereto and, their respective legal representatives, successors, heirs and distributees. Nothing in this Agreement is, express or implied, is intended or shall be construed to give any Person other than the parties to this Agreement (or their respective legal representatives, successors, heirs and distributees) any legal or equitable right, remedy or claim under or in respect of any agreement or provisions contained herein, it being the intention of the parties to this Agreement that this Agreement is for the sole and exclusive benefit of such parties (or such legal representatives and successors) and for the benefit of no other Person.

12.6 Severability of Provisions. Any provision of this Agreement that is prohibited or unenforceable in any jurisdiction shall, as to such jurisdiction, be ineffective to the extent of such prohibition or unenforceability without invalidating the remaining provisions of this Agreement or affecting the validity or enforceability of any of the terms or provisions of this Agreement in any other jurisdiction.

12.7 Counterparts. This Agreement may be executed in any number of counterparts, and each such counterpart shall for all purposes be deemed an original, and all such counterparts shall together constitute but one and the same agreement. Signatures to this Agreement delivered via pdf file or other electronic media shall be treated as original.

12.8 Notices. Any notice or other communication by the parties shall be deemed to have been sufficiently given, for all purposes via electronic mail or, if deposited, postage prepaid, in a post office or letter box addressed to such Person at his or its address as shown in the records of the Trust.

12.9 Further Assurances. The parties to this Agreement shall cooperate fully with each other in order to carry out promptly and fully the terms and provisions set forth herein. Each party hereto shall take such action and deliver such instruments to any other party hereto or to the Issuer, in addition to the actions and instruments specifically provided for herein, as may be reasonably requested or required to confirm or perfect any transaction described or contemplated herein.

[Signature Page Follows]

IN WITNESS WHEREOF, the parties hereto have caused this Agreement to be duly executed as of the day and year first above written.

ASSIGNOR:

TRINITY PLACE HOLDINGS INC.

By: /s/ Maria Reda
Name: Maria Reda
Title: General Counsel and Secretary

DELAWARE TRUSTEE:

/s/ Gregory S. Harrison
Gregory S. Harrison

ADMINISTRATIVE TRUSTEE:

TPH ADMINISTRATIVE TRUSTEE LLC

By: /s/ Joseph Martin
Name: Joseph Martin
Title: Manager

JV ENTITY:

TPHGREENWICH HOLDINGS LLC

By:

By: /s/ Daniel Bartok
Name: Daniel Bartok
Title: Authorized Signatory

TPHGREENWICH MANAGER:

TPHS INVESTOR LLC

By:

By: /s/ Joshua D. Morris

Name: Joshua D. Morris

Title: Authorized Officer

[Trust Agreement signature page II]